



Criminal Justice Act 1987

1987 CHAPTER 38

An Act to make further provision for the investigation of and trials for fraud; and for connected purposes. [15th May 1987]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows:—

PART I

FRAUD

Serious Fraud Office

1.—(1) A Serious Fraud Office shall be constituted for England and Wales and Northern Ireland.

The Serious
Fraud
Office.

(2) The Attorney General shall appoint a person to be the Director of the Serious Fraud Office (referred to in this Part of this Act as "the Director"), and he shall discharge his functions under the superintendence of the Attorney General.

(3) The Director may investigate any suspected offence which appears to him on reasonable grounds to involve serious or complex fraud.

(4) The Director may, if he thinks fit, conduct any such investigation in conjunction either with the police or with any other person who is, in the opinion of the Director, a proper person to be concerned in it.

(5) The Director may—

- (a) institute and have the conduct of any criminal proceedings which appear to him to relate to such fraud; and
- (b) take over the conduct of any such proceedings at any stage.

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(6) The Director shall discharge such other functions in relation to fraud as may from time to time be assigned to him by the Attorney General.

(7) The Director may designate for the purposes of subsection (5) above any member of the Serious Fraud Office who is—

- (a) a barrister in England and Wales or Northern Ireland;
- (b) a solicitor of the Supreme Court; or
- (c) a solicitor of the Supreme Court of Judicature of Northern Ireland.

(8) Any member so designated shall, without prejudice to any functions which may have been assigned to him in his capacity as a member of that Office, have all the powers of the Director as to the institution and conduct of proceedings but shall exercise those powers under the direction of the Director.

(9) Any member so designated who is a barrister in England and Wales or a solicitor of the Supreme Court shall have, in any court, the rights of audience enjoyed by solicitors holding practising certificates and shall have such additional rights of audience in the Crown Court in England and Wales as may be given by virtue of subsection (11) below.

(10) The reference in subsection (9) above to rights of audience enjoyed in any court by solicitors includes a reference to rights enjoyed in the Crown Court by virtue of any direction given by the Lord Chancellor under section 83 of the Supreme Court Act 1981.

1981 c. 54.

(11) For the purpose of giving members so designated who are barristers in England and Wales or solicitors of the Supreme Court additional rights of audience in the Crown Court in England and Wales, the Lord Chancellor may give any such direction as respects such members as he could give under the said section 83.

(12) Any member so designated who is a barrister in Northern Ireland or a solicitor of the Supreme Court of Judicature of Northern Ireland shall have—

- (a) in any court the rights of audience enjoyed by solicitors of the Supreme Court of Judicature of Northern Ireland and, in the Crown Court in Northern Ireland, such additional rights of audience as may be given by virtue of subsection (14) below; and
- (b) in the Crown Court in Northern Ireland, the rights of audience enjoyed by barristers employed by the Director of Public Prosecutions for Northern Ireland.

(13) Subject to subsection (14) below, the reference in subsection (12)(a) above to rights of audience enjoyed by solicitors of the Supreme Court of Judicature of Northern Ireland is a reference to such rights enjoyed in the Crown Court in Northern Ireland as restricted by any direction given by the Lord Chief Justice of Northern Ireland under section 50 of the Judicature (Northern Ireland) Act 1978.

1978 c. 23.

(14) For the purpose of giving any member so designated who is a barrister in Northern Ireland or a solicitor of the Supreme Court of Judicature of Northern Ireland additional rights of audience in the Crown Court in Northern Ireland, the Lord Chief Justice of Northern Ireland may direct that any direction given by him under the said section 50 shall not apply to such members.

(15) Schedule 1 to this Act shall have effect.

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(16) For the purposes of this section (including that Schedule) references to the conduct of any proceedings include references to the proceedings being discontinued and to the taking of any steps (including the bringing of appeals and making of representations in respect of applications for bail) which may be taken in relation to them.

(17) In the application of this section (including that Schedule) to Northern Ireland references to the Attorney General are to be construed as references to him in his capacity as Attorney General for Northern Ireland.

2.—(1) The powers of the Director under this section shall be exercisable, but only for the purposes of an investigation under section 1 above, in any case in which it appears to him that there is good reason to do so for the purpose of investigating the affairs, or any aspect of the affairs, of any person.

Director's
investigation
powers.

(2) The Director may by notice in writing require the person whose affairs are to be investigated ("the person under investigation") or any other person whom he has reason to believe has relevant information to attend before the Director at a specified time and place and answer questions or otherwise furnish information with respect to any matter relevant to the investigation.

(3) The Director may by notice in writing require the person under investigation or any other person to produce at a specified time and place any specified documents which appear to the Director to relate to any matter relevant to the investigation or any documents of a specified class which appear to him so to relate; and—

(a) if any such documents are produced, the Director may—

(i) take copies or extracts from them;

(ii) require the person producing them to provide an explanation of any of them;

(b) if any such documents are not produced, the Director may require the person who was required to produce them to state, to the best of his knowledge and belief, where they are.

(4) Where, on information on oath laid by a member of the Serious Fraud Office, a justice of the peace is satisfied, in relation to any documents, that there are reasonable grounds for believing—

(a) that—

(i) a person has failed to comply with an obligation under this section to produce them;

(ii) it is not practicable to serve a notice under subsection (3) above in relation to them; or

(iii) the service of such a notice in relation to them might seriously prejudice the investigation; and

(b) that they are on premises specified in the information,
he may issue such a warrant as is mentioned in subsection (5) below.

(5) The warrant referred to above is a warrant authorising any constable—

(a) to enter (using such force as is reasonably necessary for the purpose) and search the premises, and

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(b) to take possession of any documents appearing to be documents of the description specified in the information or to take in relation to any documents so appearing any other steps which may appear to be necessary for preserving them and preventing interference with them.

(6) Unless it is not practicable in the circumstances, a constable executing a warrant issued under subsection (4) above shall be accompanied by an appropriate person.

(7) In subsection (6) above "appropriate person" means—

(a) a member of the Serious Fraud Office; or

(b) some person who is not a member of that Office but whom the Director has authorised to accompany the constable.

(8) A statement by a person in response to a requirement imposed by virtue of this section may only be used in evidence against him—

(a) on a prosecution for an offence under subsection (14) below; or

(b) on a prosecution for some other offence where in giving evidence he makes a statement inconsistent with it.

(9) A person shall not under this section be required to disclose any information or produce any document which he would be entitled to refuse to disclose or produce on grounds of legal professional privilege in proceedings in the High Court, except that a lawyer may be required to furnish the name and address of his client.

(10) A person shall not under this section be required to disclose information or produce a document in respect of which he owes an obligation of confidence by virtue of carrying on any banking business unless—

(a) the person to whom the obligation of confidence is owed consents to the disclosure or production; or

(b) the Director has authorised the making of the requirement or, if it is impracticable for him to act personally, a member of the Serious Fraud Office designated by him for the purposes of this subsection has done so.

(11) Without prejudice to the power of the Director to assign functions to members of the Serious Fraud Office, the Director may authorise any competent investigator (other than a constable) who is not a member of that Office to exercise on his behalf all or any of the powers conferred by this section, but no such authority shall be granted except for the purpose of investigating the affairs, or any aspect of the affairs, of a person specified in the authority.

(12) No person shall be bound to comply with any requirement imposed by a person exercising powers by virtue of any authority granted under subsection (11) above unless he has, if required to do so, produced evidence of his authority.

(13) Any person who without reasonable excuse fails to comply with a requirement imposed on him under this section shall be guilty of an offence and liable on summary conviction to imprisonment for a term not exceeding six months or to a fine not exceeding level 5 on the standard scale or to both.

(14) A person who, in purported compliance with a requirement under this section—

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- (a) makes a statement which he knows to be false or misleading in a material particular; or
- (b) recklessly makes a statement which is false or misleading in a material particular,

shall be guilty of an offence.

(15) A person guilty of an offence under subsection (14) above shall—

- (a) on conviction on indictment, be liable to imprisonment for a term not exceeding two years or to a fine or to both; and
- (b) on summary conviction, be liable to imprisonment for a term not exceeding six months or to a fine not exceeding the statutory maximum, or to both.

(16) Where any person—

- (a) knows or suspects that an investigation by the police or the Serious Fraud Office into serious or complex fraud is being or is likely to be carried out; and
- (b) falsifies, conceals, destroys or otherwise disposes of, or causes or permits the falsification, concealment, destruction or disposal of documents which he knows or suspects are or would be relevant to such an investigation,

he shall be guilty of an offence unless he proves that he had no intention of concealing the facts disclosed by the documents from persons carrying out such an investigation.

(17) A person guilty of an offence under subsection (16) above shall—

- (a) on conviction on indictment, be liable to imprisonment for a term not exceeding 7 years or to a fine or to both; and
- (b) on summary conviction, be liable to imprisonment for a term not exceeding 6 months or to a fine not exceeding the statutory maximum or to both.

(18) In this section, “documents” includes information recorded in any form and, in relation to information recorded otherwise than in legible form, references to its production include references to producing a copy of the information in legible form.

(19) In the application of this section to Scotland, the reference to a justice of the peace is to be construed as a reference to the sheriff; and in the application of this section to Northern Ireland, subsection (4) above shall have effect as if for the references to information there were substituted references to a complaint.

3.—(1) Where any information subject to an obligation of secrecy under the Taxes Management Act 1970 has been disclosed by the Commissioners of Inland Revenue or an officer of those Commissioners to any member of the Serious Fraud Office for the purposes of any prosecution of an offence relating to inland revenue, that information may be disclosed by any member of the Serious Fraud Office—

Disclosure of
information.
1970 c. 9.

- (a) for the purposes of any prosecution of which that Office has the conduct;
- (b) to any member of the Crown Prosecution Service for the purposes of any prosecution of an offence relating to inland revenue; and

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- (c) to the Director of Public Prosecutions for Northern Ireland for the purposes of any prosecution of an offence relating to inland revenue,

but not otherwise.

1984 c. 60.

(2) Where the Serious Fraud Office has the conduct of any prosecution of an offence which does not relate to inland revenue, the court may not prevent the prosecution from relying on any evidence under section 78 of the Police and Criminal Evidence Act 1984 (discretion to exclude unfair evidence) by reason only of the fact that the information concerned was disclosed by the Commissioners of Inland Revenue or an officer of those Commissioners for the purposes of any prosecution of an offence relating to inland revenue.

1970 c. 9.

(3) Where any information is subject to an obligation of secrecy imposed by or under any enactment other than an enactment contained in the Taxes Management Act 1970, the obligation shall not have effect to prohibit the disclosure of that information to any person in his capacity as a member of the Serious Fraud Office but any information disclosed by virtue of this subsection may only be disclosed by a member of the Serious Fraud Office for the purposes of any prosecution in England and Wales, Northern Ireland or elsewhere and may only be disclosed by such a member if he is designated by the Director for the purposes of this subsection.

(4) Without prejudice to his power to enter into agreements apart from this subsection, the Director may enter into a written agreement for the supply of information to or by him subject, in either case, to an obligation not to disclose the information concerned otherwise than for a specified purpose.

(5) Subject to subsections (1) and (3) above and to any provision of an agreement for the supply of information which restricts the disclosure of the information supplied, information obtained by any person in his capacity as a member of the Serious Fraud Office may be disclosed by any member of that Office designated by the Director for the purposes of this subsection—

- (a) to any government department or Northern Ireland department or other authority or body discharging its functions on behalf of the Crown (including the Crown in right of Her Majesty's Government in Northern Ireland);
- (b) to any competent authority;
- (c) for the purposes of any prosecution in England and Wales, Northern Ireland or elsewhere; and
- (d) for the purposes of assisting any public or other authority for the time being designated for the purposes of this paragraph by an order made by the Secretary of State to discharge any functions which are specified in the order.

(6) The following are competent authorities for the purposes of subsection (5) above—

- (a) an inspector appointed under Part XIV of the Companies Act 1985 or Part XV of the Companies (Northern Ireland) Order 1986; **PART I**
1985 c. 6.
S.I. 1986 No. 1032
(N.I. 6).
- (b) an Official Receiver;
- (c) the Accountant in Bankruptcy;
- (d) an Official Assignee;
- (e) a person appointed to carry out an investigation under section 55 of the Building Societies Act 1986; 1986 c. 53.
- (f) a body administering a compensation scheme under section 54 of the Financial Services Act 1986; 1986 c. 60.
- (g) an inspector appointed under section 94 of that Act;
- (h) a person exercising powers by virtue of section 106 of that Act;
- (i) an inspector appointed under section 177 of that Act or any corresponding enactment having effect in Northern Ireland;
- (j) an inspector appointed under section 38 of the Banking Act 1987; 1987 c. 22.
- (k) a person exercising powers by virtue of section 44(2) of the Insurance Companies Act 1982; 1982 c. 50.
- (l) any body having supervisory, regulatory or disciplinary functions in relation to any profession or any area of commercial activity; and
- (m) any person or body having, under the law of any country or territory outside the United Kingdom, functions corresponding to any of the functions of any person or body mentioned in any of the foregoing paragraphs.

(7) An order under subsection (5)(d) above may impose conditions subject to which, and otherwise restrict the circumstances in which, information may be disclosed under that paragraph.

Transfer of cases to Crown Court

4.—(1) If—

- (a) a person has been charged with an indictable offence; and
- (b) in the opinion of an authority designated by subsection (2) below or of one of such an authority's officers acting on the authority's behalf the evidence of the offence charged—
- (i) would be sufficient for the person charged to be committed for trial; and
- (ii) reveals a case of fraud of such seriousness and complexity that it is appropriate that the management of the case should without delay be taken over by the Crown Court; and

Notices of transfer
and designated
authorities.

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- (c) before the magistrates' court in whose jurisdiction the offence has been charged begins to inquire into the case as examining justices the authority or one of the authority's officers acting on the authority's behalf gives the court a notice (in this Act referred to as a "notice of transfer") certifying that opinion,

the functions of the magistrates' court shall cease in relation to the case, except as provided by section 5(3) and (8) below and by section 28(7A) of the Legal Aid Act 1974.

1974 c. 4.

(2) The authorities mentioned in subsection (1) above (in this Act referred to as "designated authorities") are—

- (a) the Director of Public Prosecutions;
- (b) the Director of the Serious Fraud Office;
- (c) the Commissioners of Inland Revenue;
- (d) the Commissioners of Customs and Excise; and
- (e) the Secretary of State.

(3) A designated authority's decision to give notice of transfer shall not be subject to appeal or liable to be questioned in any court.

Notices of transfer—
procedure.

1980 c. 43.

5.—(1) A notice of transfer shall specify the proposed place of trial and in selecting that place the designated authority shall have regard to the considerations to which section 7 of the Magistrates' Courts Act 1980 requires a magistrates' court committing a person for trial to have regard when selecting the place at which he is to be tried.

(2) A notice of transfer shall specify the charge or charges to which it relates and include or be accompanied by such additional matter as regulations under subsection (9) below may require.

1976 c. 63.

1985 c. 23.

(3) If a magistrates' court has remanded a person to whom a notice of transfer relates in custody, it shall have power, subject to section 4 of the Bail Act 1976 and regulations under section 22 of the Prosecution of Offences Act 1985—

- (a) to order that he shall be safely kept in custody until delivered in due course of law; or
- (b) to release him on bail in accordance with the Bail Act 1976, that is to say, by directing him to appear before the Crown Court for trial;

and where his release on bail is conditional on his providing one or more surety or sureties and, in accordance with section 8(3) of the Bail Act 1976, the court fixes the amount in which the surety is to be bound with a view to his entering into his recognizance subsequently in accordance with subsections (4) and (5) or (6) of that section, the court shall in the meantime make an order such as is mentioned in paragraph (a) of this subsection.

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(4) If the conditions specified in subsection (5) below are satisfied, a court may exercise the powers conferred by subsection (3) above without the person charged being brought before it in any case in which by virtue of section 128(3A) of the Magistrates' Courts Act 1980 it would have power further to remand him on an adjournment such as is mentioned in that subsection.

1980 c. 43.

(5) The conditions mentioned in subsection (4) above are—

- (a) that the person charged has given his written consent to the powers conferred by subsection (3) above being exercised without his being brought before the court; and
- (b) that the court is satisfied that, when he gave his consent, he knew that the notice of transfer had been issued.

(6) Where notice of transfer is given after the person charged has been remanded on bail to appear before examining justices on an appointed day, the requirement that he shall so appear shall cease on the giving of the notice, unless the notice states that it is to continue.

(7) Where the requirement that a person charged shall appear before examining justices ceases by virtue of subsection (6) above, it shall be his duty to appear before the Crown Court at the place specified by the notice of transfer as the proposed place of trial or at any place substituted for it by a direction under section 76 of the Supreme Court Act 1981.

1981 c. 54.

(8) For the purposes of the Criminal Procedure (Attendance of Witnesses) Act 1965—

1965 c. 69.

- (a) any magistrates' court for the petty sessions area for which the court from which a case was transferred sits shall be treated as examining magistrates; and
- (b) a person whose written statement is tendered in evidence for the purposes of the notice of transfer shall be treated as a person who has been examined by the court.

(9) The Attorney General—

- (a) shall by regulations make provision requiring the giving of a copy of a notice of transfer, together with a statement of the evidence on which any charge to which it relates is based—
 - (i) to the person charged; and
 - (ii) to the Crown Court sitting at the proposed place of trial; and
- (b) may by regulations make such further provision in relation to notices of transfer, including provision as to the duties of a designated authority in relation to such notices, as appears to him to be appropriate.

(10) The power to make regulations conferred by subsection (9) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(11) Any such regulations may make different provision with respect to different cases or classes of case.

6.—(1) Where notice of transfer has been given, the person charged may at any time before he is arraigned apply orally or in writing to the Crown Court for the charge to be dismissed on the ground that the evidence which has been disclosed would not be sufficient for a jury properly to convict him of it.

Dismissal of
transferred charge.

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(2) Subject to subsection (4) below, oral evidence may be given on the hearing of such an application only with leave of the judge.

(3) The judge shall grant such leave only if it appears to him, having regard to any matters stated in the application for leave, that the interests of justice require him to do so.

(4) The judge may order a person who has made a written statement which it is proposed to adduce in evidence to supplement that statement by oral evidence.

(5) If—

(a) the judge makes an order under subsection (4) above; and

(b) the written statement is submitted to the court,

the statement shall not be admitted as evidence unless

(i) the person who made it gives oral evidence; or

(ii) the judge gives leave for it to be admitted without his doing so.

(6) In deciding whether to grant an application under this section the judge shall have regard—

(a) to the evidence tendered by the prosecution;

(b) to any written or oral statement tendered by the defence in support of the application; and

(c) to any oral evidence on behalf of the prosecution or the defence given under this section.

(7) A discharge under this section shall have the same effect as a refusal by examining magistrates to commit for trial, except that no further proceedings may thereafter be brought on the charge except by means of the preferment of a voluntary bill of indictment.

Preparatory hearings

Power to order
preparatory hearing.

7.—(1) Where it appears to a judge of the Crown Court that the evidence on an indictment reveals a case of fraud of such seriousness and complexity that substantial benefits are likely to accrue from a hearing (in this Act referred to as a “preparatory hearing”) before the jury are sworn, for the purpose of—

(a) identifying issues which are likely to be material to the verdict of the jury;

(b) assisting their comprehension of any such issues;

(c) expediting the proceedings before the jury; or

(d) assisting the judge’s management of the trial,

he may order that such a hearing shall be held.

(2) A judge may make an order under subsection (1) above on the application either of the prosecution or of the person indicted or, if the indictment charges a number of persons, any of them, or of his own motion.

(3) If a judge orders a preparatory hearing, he may also order the prosecution to prepare and serve any documents that appear to him to be relevant and whose service could be ordered at the preparatory hearing by virtue of this Part of this Act or Crown Court Rules.

(4) Where—

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(a) a judge has made an order under subsection (3) above; and
 (b) the prosecution have complied with it,
 the judge may order the person indicted or, if the indictment charges a number of persons, any of them to prepare and serve any documents that appear to him to be relevant and whose service could be so ordered at the preparatory hearing.

(5) An order under this section may specify the time within which it is to be complied with, but Crown Court Rules may make provision as to the minimum or maximum time that may be specified for compliance.

8.—(1) If a judge orders a preparatory hearing, the trial shall begin with that hearing.

Commencement of trial and arraignment.

(2) Arraignment shall accordingly take place at the start of the preparatory hearing.

9.—(1) At the preparatory hearing the judge may exercise any of the powers specified in this section.

The preparatory hearing.

(2) The judge may adjourn a preparatory hearing from time to time.

(3) He may determine—

- (a) an application under section 6 above;
- (b) any question as to the admissibility of evidence; and
- (c) any other question of law relating to the case.

(4) He may order the prosecution—

- (a) to supply the court and the defendant or, if there is more than one, each of them with a statement (a "case statement") of the following—
 - (i) the principal facts of the prosecution case;
 - (ii) the witnesses who will speak to those facts;
 - (iii) any exhibits relevant to those facts;
 - (iv) any proposition of law on which the prosecution proposes to rely; and
 - (v) the consequences in relation to any of the counts in the indictment that appear to the prosecution to flow from the matters stated in pursuance of sub-paragraphs (i) to (iv) above;
- (b) to prepare their evidence and other explanatory material in such a form as appears to him to be likely to aid comprehension by the jury and to supply it in that form to the court and to the defendant or, if there is more than one, to each of them;
- (c) to give the court and the defendant or, if there is more than one, each of them notice of documents the truth of the contents of which ought in the prosecution's view to be admitted and of any other matters which in their view ought to be agreed;
- (d) to make any amendments of any case statement supplied in pursuance of an order under paragraph (a) above that appear to the court to be appropriate, having regard to objections made by the defendant or, if there is more than one, by any of them.

(5) Where—

- (a) a judge has ordered the prosecution to supply a case statement; and
 - (b) the prosecution have complied with the order,
- he may order the defendant or, if there is more than one, each of them—

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- (i) to give the court and the prosecution a statement in writing setting out in general terms the nature of his defence and indicating the principal matters on which he takes issue with the prosecution;
- (ii) to give the court and the prosecution notice of any objections that he has to the case statement;
- (iii) to inform the court and the prosecution of any point of law (including a point as to the admissibility of evidence) which he wishes to take, and any authority on which he intends to rely for that purpose;
- (iv) to give the court and the prosecution a notice stating the extent to which he agrees with the prosecution as to documents and other matters to which a notice under subsection (4)(c) above relates and the reason for any disagreement.

(6) Crown Court Rules may provide that except to the extent that disclosure is required—

1967 c. 80.

(a) by section 11 of the Criminal Justice Act 1967 (alibi); or

1984 c. 60.

(b) by rules under section 81 of the Police and Criminal Evidence Act 1984 (expert evidence),

a summary required by virtue of subsection (5) above need not disclose who will give evidence.

(7) A judge making an order under subsection (5) above shall warn the defendant or, if there is more than one, all of them of the possible consequence under section 10(1) below of not complying with it.

(8) If it appears to a judge that reasons given in pursuance of subsection (5)(iv) above are inadequate, he shall so inform the person giving them, and may require him to give further or better reasons.

(9) An order under this section may specify the time within which any specified requirement contained in it is to be complied with, but Crown Court Rules may make provision as to the minimum or maximum time that may be specified for compliance.

(10) An order or ruling made at or for the purposes of a preparatory hearing shall have effect during the trial, unless it appears to the judge, on application made to him during the trial, that the interests of justice require him to vary or discharge it.

(11) An appeal shall lie to the Court of Appeal from any order or ruling of a judge under subsection (3)(b) or (c) above, but only with the leave of the judge or of the Court of Appeal.

1981 c. 54.

(12) Subject to rules of court made under section 53(1) of the Supreme Court Act 1981 (power by rules to distribute business of Court of Appeal between its civil and criminal divisions), the jurisdiction of the Court of Appeal under subsection (11) above shall be exercised by the criminal division of the court; and the reference in that subsection to the Court of Appeal shall be construed as a reference to that division.

(13) The judge may continue a preparatory hearing notwithstanding that leave to appeal has been granted under subsection (11) above, but no jury shall be sworn until after the appeal has been determined or abandoned.

(14) On the termination of the hearing of an appeal, the Court of Appeal may confirm, reverse or vary the decision appealed against.

10.—(1) Where there has been a preparatory hearing, any party may depart from the case which he disclosed at the hearing but, in the event of such a departure or of failure to comply with a requirement imposed at the hearing, the judge or, with the leave of the judge, any other party may make such comment as appears to him to be appropriate and the jury may draw such inference as appears proper.

(2) In deciding whether to give leave the judge shall have regard in all cases—

- (a) to the extent of any departure from a case indicated at the preparatory hearing; and
- (b) to whether there was any justification for it.

(3) Except as provided by this section no part—

- (a) of a statement supplied under section 9(5) above; or
- (b) of any other information relating to the case for the defendant or, if there is more than one, the case for any of them, which was given at the preparatory hearing,

may be disclosed at a stage in the trial after the jury have been sworn without the consent of the person who supplied or gave it.

PART I
Provisions relating
to later stages of
trial.

Reporting restrictions

11.—(1) Except as provided by this section, it shall not be lawful to publish in Great Britain a written report, or to broadcast or include in a cable programme in Great Britain a report—

- (a) of an application under section 6(1) above; or
- (b) of a preparatory hearing,

containing any matter other than that permitted by this section.

(2) The Crown Court shall, on an application for the purpose with respect to any such application or hearing by the accused or one of the accused, as the case may be, order that subsection (1) above shall not apply to reports of the application or hearing.

(3) Where in the case of two or more accused one of them objects to the making of an order under subsection (2) above, the court shall make the order if, and only if, it is satisfied, after hearing the representations of the accused, that it is in the interests of justice to do so.

(4) An order under subsection (2) above shall not apply to reports of proceedings under subsection (3) above, but any decisions of the court to make or not to make such an order may be contained in reports published, broadcast or included in a cable programme before the time authorised by subsection (5) below.

(5) It shall not be unlawful under this section to publish, broadcast or include in a cable programme a report of an application under section 6(1) above containing any matter other than that permitted by subsection (8) below where the application is successful.

(6) Where—

- (a) two or more persons were jointly charged; and
- (b) applications under section 6(1) above are made by more than one of them,

Restrictions on
reporting
applications for
dismissal and
preparatory
hearings.

PART I subsection (5) above shall have effect as if for the words "the application is " there were substituted the words "all the applications are".

(7) It shall not be unlawful under this section to publish, broadcast or include in a cable programme a report of an unsuccessful application or a preparatory hearing at the conclusion of the trial of the person charged, or of the last of the persons charged to be tried.

(8) The following matters may be contained in a report published, broadcast or included in a cable programme without an order under subsection (2) above before the time authorised by subsections (5) and (6) above, that is to say—

- (a) the identity of the court and the name of the judge;
- (b) the names, ages, home addresses and occupations of the accused and witnesses;
- (c) any relevant business information;
- (d) the offence or offences, or a summary of them, with which the accused is or are charged;
- (e) the names of counsel and solicitors engaged in the proceedings;
- (f) where the proceedings are adjourned, the date and place to which they are adjourned;
- (g) any arrangements as to bail;
- (h) whether legal aid was granted to the accused or any of the accused.

(9) The following is relevant business information for the purposes of subsection (8) above—

- (a) any address used by the accused for carrying on a business on his own account;
- (b) the name of any business which he was carrying on on his own account at any relevant time;
- (c) the name of any firm in which he was a partner at any relevant time or by which he was engaged at any such time;
- (d) the address of any such firm;
- (e) the name of any company of which he was a director at any relevant time or by which he was otherwise engaged at any such time;
- (f) the address of the registered or principal office of any such company; and
- (g) any working address of the accused in his capacity as a person engaged by any such company.

(10) The addresses that may be published or broadcast or included in a cable programme under subsection (8) above are addresses—

- (a) at any relevant time; and
- (b) at the time of their publication, broadcast or inclusion in a cable programme.

(11) In this section—

"engaged" means engaged under a contract of service or a contract for services, and

"relevant time" means a time when events giving rise to the charges to which the proceedings relate occurred.

PART I

(12) If a report is published, broadcast or included in a cable programme in contravention of this section, the following persons, that is to say

- (a) in the case of a publication of a written report as part of a newspaper or periodical, any proprietor, editor or publisher of the newspaper or periodical;
- (b) in the case of a publication of a written report otherwise than as part of a newspaper or periodical, the person who publishes it;
- (c) in the case of a broadcast of a report, any body corporate which transmits or provides the programme in which the report is broadcast and any person having functions in relation to the programme corresponding to those of the editor of a newspaper or periodical;
- (d) in the case of an inclusion of a report in a cable programme, any body corporate which sends or provides the programme and any person having functions in relation to the programme corresponding to those of an editor of a newspaper.

shall be liable on summary conviction to a fine not exceeding level 5 on the standard scale.

(13) Proceedings for an offence under this section shall not, in England and Wales, be instituted otherwise than by or with the consent of the Attorney General.

(14) Subsection (1) above shall be in addition to, and not in derogation from, the provisions of any other enactment with respect to the publication of reports of court proceedings.

(15) In this section—

- “broadcast” means broadcast by wireless telegraphy sounds or visual images intended for general reception;
- “cable programme” means a programme included in a cable programme service;
- “publish”, in relation to a report, means publish the report, either by itself or as part of a newspaper or periodical, for distribution to the public.

Conspiracy to defraud

12.—(1) If—

- (a) a person agrees with any other person or persons that a course of conduct shall be pursued; and
- (b) that course of conduct will necessarily amount to or involve the commission of any offence or offences by one or more of the parties to the agreement if the agreement is carried out in accordance with their intentions,

the fact that it will do so shall not preclude a charge of conspiracy to defraud being brought against any of them in respect of the agreement.

(2) In section 5(2) of the Criminal Law Act 1977, the words from “and” to the end are hereby repealed. 1977 c. 45.

(3) A person guilty of conspiracy to defraud is liable on conviction on indictment to imprisonment for a term not exceeding 10 years or a fine or both.

Charges of and
penalty for
conspiracy to
defraud.

PART II

GENERAL AND SUPPLEMENTARY

Northern
Ireland.
1974 c. 28.

13.—(1) An Order in Council under paragraph 1(1)(b) of Schedule 1 to the Northern Ireland Act 1974 (legislation for Northern Ireland in the interim period) which contains a statement that it operates only so as to make for Northern Ireland provision corresponding to any provision of this Act to which this section applies—

- (a) shall not be subject to paragraph 1(4) and (5) of that Schedule (affirmative resolution of both Houses of Parliament); but
- (b) shall be subject to annulment in pursuance of a resolution of either House.

(2) The provisions of this Act to which this section applies are sections 4 to 12.

Financial
provision.

14. There shall be paid out of money provided by Parliament—

- (a) any expenses incurred under this Act by a Minister of the Crown; and
- (b) any increase attributable to the provisions of this Act in the sums payable out of such money under any other Act.

Minor and
consequential
amendments.

15. The enactments mentioned in Schedule 2 to this Act shall have effect with the amendments there specified (being minor amendments and amendments consequential on the foregoing provisions of this Act).

Commencement.

16.—(1) Subject to subsection (3) below, this Act shall come into force on such day as the Secretary of State may by order made by statutory instrument appoint; and different days may be appointed in pursuance of this subsection for different provisions or different purposes of the same provision.

(2) An order under subsection (1) above may make such transitional provision as appears to the Secretary of State to be necessary or expedient in connection with any provision thereby brought into force.

(3) The following provisions shall come into force on the day this Act is passed—

- section 13;
- this section;
- sections 17 and 18.

Extent.

17.—(1) Subject to the following provisions of this section, this Act extends to England and Wales only.

(2) The following provisions extend also to Scotland—

- section 2;
- section 11;
- section 16;
- this section; and
- section 18.

(3) The following provisions extend also to Northern Ireland—

- section 1 (including Schedule 1) and sections 2 and 3;
- section 16;
- this section; and
- section 18.

(4) Section 13 above extends to Northern Ireland only.

PART II

(5) The extent of any amendment of an enactment in Schedule 2 to this Act is the same as that of the enactment amended.

(6) Her Majesty may by Order in Council direct that section 2 above shall extend, subject to such modifications as may be specified in the Order, to any of the Channel Islands.

(7) In subsection (6) above "modifications" includes additions, omissions and amendments.

18. This Act may be cited as the Criminal Justice Act 1987.

Citation.

SCHEDULES

Section 1.

SCHEDULE 1

THE SERIOUS FRAUD OFFICE

General

1. There shall be paid to the Director of the Serious Fraud Office such remuneration as the Attorney General may, with the approval of the Treasury, determine.

2. The Director shall appoint such staff for the Serious Fraud Office as, with the approval of the Treasury as to numbers, remuneration and other terms and conditions of service, he considers necessary for the discharge of his functions.

3.—(1) As soon as practicable after 4th April in any year the Director shall make to the Attorney General a report on the discharge of his functions during the year ending with that date.

(2) The Attorney General shall lay before Parliament a copy of every report received by him under sub-paragraph (1) above and shall cause every such report to be published.

Procedure

4.—(1) Where any enactment (whenever passed) prohibits the taking of any step—

- (a) except by the Director of Public Prosecutions or except by him or another; or
- (b) without the consent of the Director of Public Prosecutions or without his consent or the consent of another.

it shall not prohibit the taking of any such step by the Director of the Serious Fraud Office.

(2) In this paragraph references to the Director of Public Prosecutions include references to the Director of Public Prosecutions for Northern Ireland.

1985 c. 23.

5.—(1) Where the Director has the conduct of any criminal proceedings in England and Wales, the Director of Public Prosecutions shall not in relation to those proceedings be subject to any duty by virtue of section 3(2) of the prosecution of Offences Act 1985.

S.I. 1972 No. 538
(N.I. 1).

(2) Where the Director has the conduct of any criminal proceedings in Northern Ireland, the Director of Public Prosecutions for Northern Ireland shall not in relation to those proceedings be required to exercise any function under Article 5 of the Prosecution of Offences (Northern Ireland) Order 1972.

6.—(1) Where the Director or any member of the Serious Fraud Office designated for the purposes of section 1(4) above ("designated official") gives notice to any justice of the peace that he has instituted, or is conducting, any criminal proceedings in England and Wales, the justice shall—

- (a) at the prescribed time and in the prescribed manner; or
- (b) in a particular case, at the time and in the manner directed by the Attorney General;

send him every recognizance, information, certificate, deposition, document and thing connected with those proceedings which the justice is required by law to deliver to the appropriate officer of the Crown Court.

(2) Where the Director or any designated official gives notice that he has instituted, or is conducting, any criminal proceedings in Northern Ireland—

SCH. 1

(a) to a resident magistrate or a justice of the peace in Northern Ireland;
(b) to a clerk of petty sessions in Northern Ireland,
the person to whom the notice is given shall—

- (i) at the prescribed time and in the prescribed manner; or
- (ii) in a particular case, at the time and in the manner directed by the Attorney General,

send him every recognizance, complaint, certificate, deposition, document and thing connected with those proceedings which that person is required by law to deliver to the appropriate officer of the Crown Court.

(3) The Attorney General may make regulations for the purpose of supplementing this paragraph; and in this paragraph "prescribed" means prescribed by the regulations.

(4) The Director or, as the case may be, designated official shall—

- (a) subject to the regulations, cause anything which is sent to him under this paragraph to be delivered to the appropriate officer of the Crown Court; and
- (b) be under the same obligation (on the same payment) to deliver to an applicant copies of anything so sent as that officer.

7.—(1) The Attorney General may make regulations requiring the chief officer of any police force to which the regulations are expressed to apply to give to the Director information with respect to every offence of a kind prescribed by the regulations which is alleged to have been committed in his area and in respect of which it appears to him that there is a *prima facie* case for proceedings.

(2) The regulations may also require every such chief officer to give to the Director such information as the Director may require with respect to such cases or classes of case as he may from time to time specify.

8.—(1) The Attorney General may, with the approval of the Treasury, by regulations make such provision as he considers appropriate in relation to—

- (a) the fees of counsel briefed to appear on behalf of the Serious Fraud Office in any criminal proceedings; and
- (b) the costs and expenses of witnesses attending to give evidence at the instance of the Serious Fraud Office and, subject to sub-paragraph (2) below, to any other person who in the opinion of that Office necessarily attends for the purpose of the case otherwise than to give evidence.

(2) The power conferred on the Attorney General by sub-paragraph (1)(b) above only relates to the costs and expenses of an interpreter if he is required because of the lack of English of a person attending to give evidence at the instance of the Serious Fraud Office.

(3) The regulations may, in particular—

- (a) prescribe scales or rates of fees, costs or expenses; and
- (b) specify conditions for the payment of fees, costs or expenses.

(4) Regulations made under sub-paragraph (1)(b) above may provide that scales or rates of costs and expenses shall be determined by the Attorney General with the consent of the Treasury.

9.—(1) Any power to make regulations under this Schedule shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(2) Any such regulations may make different provision with respect to different cases or classes of case.

SCHEDULE 2

Section 15.

MINOR AND CONSEQUENTIAL AMENDMENTS

Administration of Justice (Miscellaneous Provisions) Act 1933 (c. 36.)

1—(1) The following paragraph shall be inserted after paragraph (a) of subsection (2) of section 2 of the Administration of Justice (Miscellaneous Provisions) Act 1933 (procedures for indictment of offenders)—

“(aa) the offence is specified in a notice of transfer under section 4 of the Criminal Justice Act 1987 (serious and complex fraud); or”.

(2) The following paragraph shall be inserted after paragraph (i) of the proviso to that subsection—

“(iA) in a case to which paragraph (aa) above applies, the bill of indictment may include, either in substitution for or in addition to any count charging an offence specified in the notice of transfer, any counts founded on evidence set out in the statement of evidence that was included in or accompanied that notice, in pursuance of regulations under section 5(9) of the Criminal Justice Act 1987, being counts which may lawfully be joined in the same indictment;”.

Criminal Justice Act 1967 (c. 80.)

2. At the end of section 11(8) of the Criminal Justice Act 1967 (by virtue of which the period for giving notice of an alibi is 7 days from the end of the proceedings before the examining justices) there shall be added the words “or, where a notice of transfer has been given under section 4 of the Criminal Justice Act 1987, of the giving of that notice”.

Criminal Appeal Act 1968 (c. 19.)

3. At the end of subsection (1) of section 33 of the Criminal Appeal Act 1968 (right of appeal to House of Lords) there shall be added the words “or section 9 (preparatory hearings) of the Criminal Justice Act 1987”.

4. In section 36 of that Act (bail on appeal by defendant) after the word “Lords,” there shall be inserted the words “other than a person appealing or applying for leave to appeal from a decision on an appeal under section 9(11) of the Criminal Justice Act 1987 (appeals against orders or rulings at preparatory hearings),”.

5. In section 38 of that Act (presence of defendant at hearing) after the word “who” there shall be inserted the words “has been convicted of an offence and”.

Prosecution of Offences (Northern Ireland) Order 1972 (S.I., 1972, No. 538 N.I. 1.)

6. In Article 5(3) of the Prosecution of Offences (Northern Ireland) Order 1972 (which makes provision, amongst other things, for the functions of the Director of Public Prosecutions in Northern Ireland in relation to the conduct of criminal proceedings) after the word “Director” there shall be inserted the words “, subject to any provision contained in the Criminal Justice Act 1987”.

Legal Aid Act 1974 (c. 4.)

7. The following subsection shall be inserted after section 28(7) of the Legal Aid Act 1974—

“(7A) Where a notice of transfer is given under section 4 of the Criminal Justice Act 1987, the magistrates’ court in whose jurisdiction the offence was charged or the Crown Court may order that the person charged shall be given legal aid for the purpose of the trial.”.

8. The following subsection shall be inserted after section 28(8) of that Act— SCH. 2
“(8A) The Crown Court or the criminal division of the Court of Appeal may order that a person shall be given legal aid for the purpose—
(a) of an application for leave to appeal under section 9(11) of the Criminal Justice Act 1987 (appeals against orders or rulings at preparatory hearings); or
(b) of an appeal under that subsection.”.

Bail Act 1976 (c. 63.)

9. The following subsection shall be inserted after section 3(8) of the Bail Act 1976—

“(8A) Where a notice of transfer is given under section 4 of the Criminal Justice Act 1987, subsection (8) above shall have effect in relation to a person in relation to whose case the notice is given as if he had been committed on bail to the Crown Court for trial.”.

Supreme Court Act 1981 (c. 54.)

10. In section 76 of the Supreme Court Act 1981 (alteration by Crown Court of place of trial)—

- (a) in subsection (1), after the word “or”, in the second place where it occurs, there shall be inserted the words “by substituting some other place for the place specified in a notice under section 4 of the Criminal Justice Act 1987 (notices of transfer from magistrates’ court to Crown Court) or by varying”;
- (b) after subsection (2), there shall be inserted the following subsection—
“(2A). Where a preparatory hearing has been ordered under section 7 of the Criminal Justice Act 1987, directions altering the place of trial may be given under subsection (1) at any time before the jury are sworn”; and
- (c) in subsection (3), for the word “or”, in the second place where it occurs, there shall be substituted the words “as specified in a notice under section 4 of the Criminal Justice Act 1987 or as fixed”.

11. In section 77(1) of that Act (by virtue of which Crown Court Rules are required to prescribe the minimum and maximum period which may elapse between a person’s committal for trial and the beginning of the trial) after the word “trial”, in the first place where it occurs, there shall be inserted the words “or the giving of a notice of transfer under section 4 of the Criminal Justice Act 1987”.

12. In section 81(1)(a) of that Act (power of Crown Court to grant bail to any person committed in custody for appearance before the Crown Court) after the word “Court” there shall be inserted the words “or in relation to whose case a notice of transfer has been given under section 4 of the Criminal Justice Act 1987”.

Prosecution of Offences Act 1985 (c. 23.)

13. In section 3(2) of the Prosecution of Offences Act 1985 (which makes provision, amongst other things, for the duties of the Director of Public Prosecutions in relation to the conduct of criminal proceedings) after the word “Director” there shall be inserted the words “, subject to any provisions contained in the Criminal Justice Act 1987”.

14. The following paragraph shall be inserted after paragraph (a) of section 16(2) of that Act (defendant’s costs order)—

“(aa) a notice of transfer is given under section 4 of the Criminal Justice Act 1987 but a person in relation to whose case it is given is not tried on a charge to which it relates; or”.

SCH. 2

15. The following subsection shall be inserted after section 16(4) of that Act—
“(4A) The court may also make a defendant’s costs order in favour of the accused on an appeal under section 9(11) of the Criminal Justice Act 1987 (appeals against orders or rulings at preparatory hearings).”.

16. At the end of subsection (2)(b) of section 18 of that Act (award of costs against accused) there shall be added “or

(c) an appeal or application for leave to appeal under section 9(11) of the Criminal Justice Act 1987;”.